



EVL1 — Introduction to Evidence and Proof

Module 6 — Standard of Proof

Lesson 1: Standard of Proof

Student Lesson Notes

WHAT IS THE STANDARD OF PROOF?

Standard of Proof: The level of certainty or degree of persuasion that a court must reach before it decides that a party has discharged their burden of proof on a particular issue.

Two Standards

Beyond Reasonable Doubt: The criminal standard — applies in all criminal prosecutions in Uganda. The prosecution must prove every element of every offence to this standard.

Balance of Probabilities: The civil standard — applies in all civil proceedings. The party must show their version is more probable than not.

These two standards reflect a deliberate policy choice. A wrongful criminal conviction can deprive a person of liberty or life — severe and irreversible. A wrongful civil judgment results in financial consequences — serious but generally more reversible. The law demands higher certainty before a criminal conviction.

Why the Standard Matters

Consider a murder case where the prosecution has strong but not overwhelming evidence. The judge finds it points to the accused but is not completely sure. In a criminal case that remaining doubt means acquittal. In a civil case on the same facts the court may find for the claimant on the balance of probabilities. This is why a person acquitted of murder can be found civilly liable for the same death — different standards applied to the same evidence.

BEYOND REASONABLE DOUBT

Beyond reasonable doubt is the highest standard of proof in Ugandan law. The court must be sure of the accused's guilt — firmly convinced, not merely thinking guilt is more likely than innocence.

What Reasonable Doubt Is NOT

- Not any possible doubt — absolute certainty is not required.
- Not mere speculation or imaginary doubt — the doubt must be based on reason arising from the evidence.
- Not created merely by the accused's denial of guilt — the court evaluates all the evidence.

If, after evaluating all the evidence, the court has a reasonable doubt about the accused's guilt — a doubt based on reason from the evidence — that doubt MUST be resolved in favour of the accused. This is a constitutional requirement, not a discretion.

Woolmington v DPP [1935] AC 462 — *persuasive authority in Uganda* — The golden thread: it is the duty of the prosecution to prove the prisoner's guilt. The accused bears no legal burden to prove innocence.

Miller v Minister of Pensions [1947] 2 All ER 372, Lord Denning — *persuasive authority* — The standard requires a high degree of probability but not certainty beyond the shadow of a doubt.

Akbar Hussein Godi v Uganda Criminal Appeal No. 3 of 2013, Supreme Court — Strong suspicion does not amount to proof beyond reasonable doubt. Courts convicting on suspicion misapply the standard — such convictions are overturned.

Ntambala v Uganda Criminal Appeal No. 34 of 2015, Court of Appeal — The court must be sure of guilt — the beyond reasonable doubt standard applies and must be properly applied.

BALANCE OF PROBABILITIES

Balance of Probabilities: The civil standard. The party bearing the burden must satisfy the court that their version of events is more probable than not — that the scales of probability tip in their favour, even slightly.

A 51% probability is sufficient. Certainty is not required. The civil standard is lower because civil consequences — financial or property-related — are generally more reversible than a criminal conviction involving loss of liberty.

Application in Ugandan Civil Practice

Uganda Electricity Board v G.W. Musoke *Civil Appeal No. 30 of 1993* — Ugandan civil courts applying the balance of probabilities — examining all evidence and determining whose account is more probable.

Criminal Conduct in Civil Cases

Where a civil allegation involves criminal conduct such as fraud, the civil standard of balance of probabilities still applies. However, the more serious the allegation, the more cogent the evidence must be to tip the balance of probabilities. The standard does not change — but more convincing evidence is required to meet it for serious allegations.

WHERE EACH STANDARD APPLIES

Beyond Reasonable Doubt Applies In:

- All criminal prosecutions in Uganda — Magistrates Courts Act Cap. 19, Trial on Indictments Act Cap. 25, appellate courts on criminal appeals.
- Every element of every criminal offence must reach this standard.
- Contempt of court proceedings where imprisonment may result.

Balance of Probabilities Applies In:

- All civil claims — contract disputes, land disputes, tort claims, family law, employment, commercial matters.
- Affirmative defences raised by defendants in civil proceedings.
- The defence of insanity in criminal cases — Section 11 Trial on Indictments Act Cap. 25.
- Constitutional rights enforcement applications under Article 50 of the Constitution of Uganda 1995.

Both Standards Can Apply in One Proceeding

Where an accused raises the defence of insanity in a criminal trial: the prosecution must prove the elements of the offence beyond reasonable doubt, while the accused must prove insanity on the balance of probabilities. Two different standards on different issues within the same proceedings.

Practical Checklist

- Step 1: Criminal or civil? Criminal: beyond reasonable doubt. Civil: balance of probabilities.
- Step 2: Element of offence or specific defence? Elements: beyond reasonable doubt on prosecution. Insanity defence: balance of probabilities on accused.
- Step 3: Civil allegation of serious conduct? Civil standard applies but more cogent evidence required.

LESSON SUMMARY — KEY POINTS

- ✓ Standard of proof: the degree of persuasion a court must reach before finding a burden discharged

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- ✓ Two standards: beyond reasonable doubt (criminal) and balance of probabilities (civil)
- ✓ Beyond reasonable doubt: the court must be SURE — firmly convinced, not merely thinking guilt more probable
- ✓ Reasonable doubt must be based on reason from the evidence — not speculation or sympathy
- ✓ Benefit of the doubt: if reasonable doubt exists it must resolve in favour of the accused — constitutional requirement
- ✓ Key authorities: Woolmington v DPP [1935] AC 462; Akbar Hussein Godi v Uganda CA No. 3 of 2013; Ntambala v Uganda CA No. 34 of 2015; Miller v Minister of Pensions [1947]
- ✓ Balance of probabilities: more probable than not — a 51% probability suffices
- ✓ Criminal acquittal does not prevent civil liability — different standards applied to the same facts
- ✓ Both standards can apply in the same proceeding on different issues

SELF-TEST QUESTIONS

Attempt these before checking the platform practice quiz.

1. What is the criminal standard of proof in Uganda? What does it mean in practice?
2. A magistrate convicts saying she is satisfied it is more likely than not the accused committed the offence. What error has she made?
3. State the constitutional basis for the beyond reasonable doubt standard in Uganda.
4. What standard applies to the defence of insanity under Section 11 of the Trial on Indictments Act Cap. 25?
5. Explain how a person acquitted of murder can be found civilly liable for the same death.